

K&K ENTERPRISES LTD.

(DBA K&K Trailer Sales)

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NOTICE OF TERMINATION OF RENTAL AGREEMENT

AND DEMAND FOR IMMEDIATE RETURN OF EQUIPMENT

DATE OF THIS NOTICE	UNIT #	
TO (RENTER / COMPANY)	ATTENTION	
DELIVERED BY		
☐ Email ☐ Text ☐ Courier ☐ Registered mail ☐ Personal service		
SENT TO (ADDRESS / NUMBER)		
RENTAL AGREEMENT DATED	VIN 1	VIN 2

1. TERMINATION

Take notice that K&K Enterprises Ltd. ("K&K") hereby **terminates** the Equipment Rental Agreement identified above, effective immediately upon delivery of this Notice.

K&K exercises its right of termination under that Agreement. Noncompliance with the stated terms may result in equipment repossession.

2. GROUNDS

This Notice is given on the following grounds:

- ☐ Non-payment. Rental payments remain unpaid and are more than fifteen (15) days past due.
- ☐ Failed or cancelled payment method. The payment information on file has been declined, cancelled or is otherwise unusable.
- ☐ Damage. Damage beyond normal wear has been observed, or damage occurred and was not reported.
- ☐ Equipment care. The Equipment has not been maintained or cared for as required.
- ☐ Insurance. The Renter has failed to maintain required coverage, or to keep K&K Enterprises Ltd. named as loss payee.
- ☐ Unauthorized use or possession. The Equipment has been sublet, transferred, or is in the possession of a party other than the Renter.
- ☐ Location. K&K has been unable to confirm the location of the Equipment.
- ☐ Insolvency. The Renter has become insolvent, ceased operations, or is subject to receivership or bankruptcy.

OTHER GROUNDS (IF APPLICABLE)

3. DEMAND FOR RETURN OF THE EQUIPMENT

The Renter's right and authority to possess or use the Equipment **ended upon delivery of this Notice.**

RETURN NO LATER THAN 5:00 P.M. ON (MINIMUM 5 DAYS FROM DELIVERY)

RETURN TO

☐ Rimbey, AB ☐ Delisle, SK

Contact the rental manager in advance to arrange the return. The Equipment must be returned clean, empty of product, and with the hopper cranks and any other accessories supplied with it.

4. CONSEQUENCES OF FAILING TO RETURN THE EQUIPMENT

READ THIS SECTION CAREFULLY

This concerns the return of K&K's property and applies regardless of any dispute about money.

- 4.1. Possession after the deadline is unlawful.** The Equipment is and has at all times remained the property of K&K Enterprises Ltd. The Renter held it only as a bailee under a rental. That rental is now terminated and K&K's consent to the Renter's possession is **revoked**. Any retention of the Equipment after the deadline in Section 3 is without K&K's consent and is unlawful.
- 4.2. Conversion and detainue.** Continued possession after a demand for return constitutes the torts of conversion and detainue. K&K will pursue civil recovery of the Equipment, together with damages for its wrongful detention and all costs of recovery.
- 4.3. Reporting.** The Renter is advised that the conversion of property held under a bailment, after the owner's consent to possession has been withdrawn, may constitute an offence under the Criminal Code of Canada, including the provisions respecting theft (s. 322). If the Equipment is not returned by the deadline in Section 3, **K&K will report the Equipment as unlawfully retained** and will provide the relevant authorities with this Agreement, this Notice, proof of its delivery, the Renter's contact and identifying information, the last known location of the Equipment, and any GPS or telematics data in K&K's possession.
- 4.4. Insurers and recovery agents.** K&K will disclose the same information to its insurers, to legal counsel, and to any recovery agent it retains, and will notify the Renter's insurer that the Equipment is being unlawfully retained.
- 4.5. Recovery of the equipment.** K&K reserves its right to repossess the Equipment and will take all steps available to it at law to recover it, including applying to the Court for an order for possession. All costs of locating, recovering and transporting the Equipment will be charged to the Renter.
- 4.6. Charges continue.** Payments continue until the Equipment is returned to K&K's location. Rental charges therefore continue to accrue for every day the Equipment is not returned, in addition to all other remedies.
- 4.7. Insurance must be maintained.** Until the Equipment is returned, the Renter remains obliged to maintain full insurance coverage with K&K Enterprises Ltd. named as loss payee, and remains fully liable for any loss, theft or damage to the Equipment however caused.

5. AMOUNTS OWING

The following amounts are outstanding as of the date of this Notice. These are a debt owing to K&K and are a **separate matter** from the return of the Equipment demanded in Section 3.

Unpaid rent to date	\$	
Applicable taxes	\$	
Wash / product removal (if applicable)	\$	
Damage or repair costs (if applicable)	\$	
Other	\$	
TOTAL OUTSTANDING	\$	

Amounts not rectified may be referred to collections, which may negatively affect the Renter's credit rating. Payment of the amounts above does not reinstate the Agreement and does not create any right to retain the Equipment.

6. NO WAIVER

Nothing in this Notice, and no acceptance of any payment by K&K, waives or limits any right or remedy available to K&K under the Agreement or at law, all of which are expressly reserved.

7. CONTACT

All communication regarding this Notice, and arrangements for return of the Equipment, must be directed to:

NAME	TITLE
PHONE	EMAIL

AUTHORIZATION

AUTHORIZED SIGNATURE FOR K&K ENTERPRISES LTD.	DATE
PRINT NAME AND TITLE	